

B. and their heirs by a will duly executed, and left an untested paper referring to trusts for a charity, Mr. Wilbraham in the argument observed, "If this were a voluntary *deed*, would a *paper*, even declaring a trust, be sufficient to take it from the grantee? no, certainly" (*h*); and it is very observable that Lord Hardwicke, in referring to this observation, excludes the case of a *deed*, and lays it down that "if the testator had made a *feoffment* to himself and his heirs, and left such a *paper*, this would have been a good declaration of trust" (*i*).

5. **Declaration of trust by the king.** — The declaration of a *use* by the *king* must have been by letters patent (*k*); and it seems that the same doctrine is now applicable to trusts (*l*).

[*53]

* SECTION II.

OF THE STATUTE OF FRAUDS.

By the seventh section of the Statute of Frauds (*a*) it is enacted, that "all declarations or creations of trusts or confidences of any *lands, tenements, or hereditaments*, shall be *manifested and proved* by some *writing, signed* by the party who is by law enabled to declare such trust, or by his last will in writing, or else they shall be utterly void and of none effect."

Upon the subject of this enactment we shall first briefly point out what interests are within the Act; and, secondly, what formalities are required by it.

I. *Of the interests within the Act.*

1. **Copyholds.** — *Copyholds* are to be deemed within the operation of the clause, for as a trust is engrafted on the estate of the *copyhold* tenant, the rights of the lord, who claims by title paramount, cannot in any way be injuriously affected, and therefore the ordinary ground for exempting copyholds from statutory enactments does not exist (*b*). A

(*h*) Ib. 145.(*i*) Ib. 151.(*k*) Bacon on Uses, 66.(*l*) Fordyce v. Willis, 3 B. C. C. 577.(*a*) 29 Car. 2. c. 3.

(*b*) See Withers v. Withers, Amb. 151; Goodright v. Hodges, 1 Watk. on Cop. 227; S. C. Lofft. 230; Ach-
erley v. Acheryley, 7 B. P. C. 273; but
see Devenish v. Baines, Pr. Ch. 5.